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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

DATED: 16-10-2026

CORAM

THE HON'BLE MR.JUSTICE S.KARTHIKEYAN

CRL A(MD) No. 1224 of 2026

CNR:{HCMD011431722026}

Case QR

1. M.Selvakumar
   S/o. Mookan,
   Komanapatti, Sathampaadi,
   Natham Taluk,
   Dindigul District- 624 401

2. C.Prabakaran
   S/o. Chellam,
   Komanapatti, Sathampaadi,
   Natham Taluk,
   Dindigul District - 624 401.

3. S.Gokul
   S/o. Subiramani,
   Komanapatti, Sathampaadi,
   Natham Taluk,
   Dindigul District - 624 401.

4. R.Ajay
   S/o. Ravi,
   Komanapatti, Sathampaadi,
   Natham Taluk,
   Dindigul District- 624 401.

..Appellant(s)

Vs

1. The State ofTamilnadu rep by
   The Deputy superintendent of Police,
   Natham Taluk,
   Dindigul District.

2. State Of Tamilnadu Rep By Inspector Of Police,
   Natham
   Police station,

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Natham Taluk,
Dindigul District.
(Crime No.589/2026)

3. M.Ashok

4.C.Kanagaraj

5.R.Boopathi Kannan

6.Manoj

7.M.Mayakannan

8.P.Priyadharshini

9.M.Chandra

10.Sindhuja Shri (Minor),

Represented by her father B.Siva

11.A.Parimala

..Respondent(s)

(R 4 to R 11 were impleaded vide order dated 16.10.2026)

PRAYER: Criminal Appeal filed under Section 14 A(2) of the SC/ST (POA) Amendment Act, 2015 to set aside the order passed in Crl.M.P.No.268 of 2026 dated 30.09.2026 on the file of the Special Court for Exclusive Trial of Cases under SC/ST (POA) Act, Dindigul and enlarge the appellants 1 to 4/Accused Nos.3, 7, 9 and 10 on bail in connection with Crime No.589 of 2026 on the file of the respondent police.

For Appellant(s): Mr.S.Arunnithy

For Respondent(s): Mr.G.Ganesh Kumar (R1 & R2)
Government Advocate
(Criminal Side)

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Mr.K.Pandiarajan
For victims

JUDGMENT

This appeal is directed against the order declining to grant bail to the appellants by the learned Special Court for Exclusive Trial of Cases under the SC/ST (POA) Act, Dindigul, in Crime No.589 of 2026.\

2.The learned counsel for the appellants submitted that, when the Vinayakar idol was taken in procession in connection with the Vinayakar Chathurthi festival, a quarrel erupted between two groups of people belonging to Komanapatti, Natham Taluk. In this connection, the present case was registered in Crime No.589 of 2026 for the offences punishable under Sections 191(2), 191(3), 296(b), 115(2), 118(1), 351(3) and 79 of the Bharatiya Nyaya Sanhita (BNS), and Sections 3(1)(r), 3(1)(s), 3(1)(2a)(C), 3(1)(y), 3(1)(w)(i), 3(1)(2)(ii) and 3(2)(va) of the SC/ST (POA) Act. A counter-case was registered in Crime No.590 of 2026 against 22 accused for the offences punishable under Sections 296, 296(b), 191(2), 191(3), 119(2), 118(1), 351(2) and 79 of the BNS and Section 92(b) of the Rights of Persons with Disabilities Act, 2016.

3.The learned counsel further submitted that, in the counter-case,

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22 persons were arrayed as accused, of whom four were arrested and the others obtained anticipatory bail. The arrested persons were also subsequently released on bail. Therefore, the learned counsel prayed that the appellants be enlarged on bail.

4.The learned Government Advocate (Criminal Side) submitted that, based on the complaint lodged by the third respondent, the present case came to be registered by the respondent police. There was a clash between two groups belonging to different communities in connection with the procession of the Ganesha idol during the Vinayakar Chathurthi festival. In this connection, a case and a counter-case were registered. In the counter-case, 22 persons were arrayed as accused, and all of them were granted bail or anticipatory bail, as the case may be. In the present case, 14 persons were arrayed as accused. Of them, ten persons surrendered pursuant to the order passed by this Court in Crl.O.P.(MD) No.22719 of 2026 and obtained bail from the trial Court. Therefore, the learned Government Advocate strongly opposed the grant of bail to the appellants.

5.Notice was issued to the victims, who appeared in person before this Court today.

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6.The victims are represented by their learned counsel. The learned counsel for the victims submitted that, during the Vinayakar Chathurthi festival, when they took the Ganesha idol in procession, the accused unlawfully assembled, attacked them with deadly weapons and abused them in filthy language by referring to their caste names. The learned counsel further submitted that, if the accused are released on bail, they may issue further threats to the victims. Therefore, the learned counsel strongly opposed the grant of bail to the appellants.

7.This Court has given its thoughtful consideration to the rival submissions made by the learned counsel appearing on either side.

8.It is the case of the prosecution that, on 18.09.2026, at around 8.30 a.m., a procession of the Ganesha idol was taken out in Komanapatti Village in connection with the Vinayakar Chathurthi festival. At that time, a clash broke out between two groups of people belonging to the said village, resulting in injuries to persons on both sides. In this connection, Crime No.589 of 2026 was registered against the appellants, while Crime No.590 of 2026 was registered against the members of the other group.

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9.In the counter-case, all the accused were granted bail or anticipatory bail, as the case may be. In the present case also, except for the appellants, all the other accused surrendered pursuant to the order passed by this Court in Crl.O.P.(MD) No.22719 of 2026 and obtained bail from the trial Court. It is further seen that the injured persons have already been discharged from the hospital and are physically present before this Court.

10.Considering all the above circumstances, this Court is inclined to allow this criminal appeal, subject to the imposition of stringent conditions.

11.Accordingly, this Criminal Appeal is allowed, and the order passed by the learned Special Court for Exclusive Trial of Cases under the SC/ST (POA) Act, Dindigul, in Crl.M.P.No.268 of 2026, dated 30.09.2026, is hereby set aside. The appellants are ordered to be released on bail, subject to the following conditions:

i. The appellants shall execute a bond for a sum of Rs.20,000/- (Rupees Twenty Thousand only) each, with two sureties each for a like sum, to the satisfaction of the learned Special Court for Exclusive Trial of

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Cases under the SC/ST (POA) Act, Dindigul.

ii. The appellants and their sureties shall submit copies of their Aadhaar cards or any other identity cards issued by the Government as proof of their residential addresses.

iii. The appellants shall file affidavits of undertaking before the respondent police, undertaking that they will not involve themselves in any criminal activity in the future.

iv. The appellants shall reside in Trichy and shall not enter the village or contact the victims or the de facto complainant, either directly or through electronic means, during the period of bail.

v. The appellants shall not contact the victims or their family members, either directly or indirectly, with a view to influencing them to withdraw the complaint.

vi. The appellants shall reside in Trichy and report before the Inspector of Police, Malaikottai Police Station, Trichy, daily at 10.30 a.m., until further orders, except on days when their appearance is

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required before the trial Court.

vii. In the event of any violation of the above conditions by the appellants, the respondent police shall be at liberty to move an application seeking cancellation of bail.

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Index: Yes/No
Speaking/Non-speaking order
Neutral Citation: Yes/No

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To

1.The Special Court for Exclusive Trial of Cases under SC/ST (POA) Act, Dindigul.

2.The Deputy superintendent of Police,
Natham Taluk,
Dindigul District.

3.The Inspector Of Police,

Natham Police station,
Natham Taluk,
Dindigul District.

4.The District Jail,
Dindigul.

5.The Additional Public Prosecutor,
Madurai Bench of Madras High Court,
Madurai.

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S.KARTHIKEYAN, J.
PS

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